



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9775 (EXTENSION)
THIRD REVISION October 30, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9775 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

DEC 1 1992

(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

Rotocast Plastic Products, Inc.
Bossier City, LA

October 20, 1992



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DOT-E 9775
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1. Rotocast Plastic Products, Inc., Bossier City, LA, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of the damaged or leaking packages of hazardous materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the manufacture, marking and sale of a polyethylene, removable head salvage drum of 85-gallon capacity for overpacking of damaged or leaking packages of hazardous materials or for packing hazardous materials that have spilled or leaked, for repackaging or disposal, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Essex Environmental Industries, Incorporated's applications dated March 20, 1989, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon and Wonder Products, Inc.'s letter of September 13, 1990.

3. HAZARDOUS MATERIALS (Descriptor and class). Hazardous materials in salvage drums conforming to the provisions of Section 173.3(c).

4. PROPER SHIPPING NAME (49 CFR 172.101). Specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.3(c).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a polyethylene, removable head salvage drum not to exceed 85-gallon capacity (rotationally molded of cross-linked, or linear low or linear medium density polyethylene resin), and having a minimum wall thickness of 0.135-inch. Each drum must be as depicted in Essex Environmental Industries, Inc., Drawing No. 87018, dated October 25, 1986. Also, randomly selected drums must be capable of satisfactorily withstanding without leakage the performance tests prescribed in 49 CFR 178.19-7(a) except for the hydrostatic pressure test which is required at 5 pounds per square inch gauge rather than 15 pounds per square inch gauge.

8. SPECIAL PROVISIONS.

a. Offerors for transportation of hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; the special packaging requirements of 49 CFR 173.3a for certain poisonous materials; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100-180.

c. Prior to the use of this drum, results of the performance tests prescribed in 49 CFR 178.19-7(a) must be submitted to the Office of Hazardous Materials Transportation.

d. The drum must be compatible with the material being packaged in accordance with the compatibility requirements of 49 CFR 173.24(d).

e. All of the conditions specified in 49 CFR 173.3(c) including marking, labeling and shipping papers requirements must be satisfied when the drum authorized by this exemption is used.

f. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

g. Effective January 1, 1991, each container body and cover or lid manufactured under the authority of this exemption must be either (1) permanently marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) permanently marked with a registration symbol designated for a specific manufacturing facility. Each container body and cover or lid must be plainly and permanently marked "DOT-E 9775".

h. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated for a specific manufacturing facility.

i. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reporting to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. March 31, 1991.

Issued at Washington, D.C.



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 30 1990

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FHWA, FRA